

# TERMS & CONDITIONS

## JSG SMILE – Jharsuguda Supplier & MSME Integrated Local Exchange

Website: [www.jsgsmile.in](http://www.jsgsmile.in)

**Effective Date:** [30/07/2026]

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## 1. INTRODUCTION

JSG SMILE ([www.jsgsmile.in](http://www.jsgsmile.in)) (“Portal”) is a procurement facilitation platform established under the guidance of the District Industries Centre (DIC), Jharsuguda, Government of Odisha, to promote business opportunities between Large Buyers and Micro, Small and Medium Enterprises (MSMEs) located within Jharsuguda District.

The Portal aims to encourage local sourcing, strengthen MSME participation in procurement, support economic development, and facilitate business interactions between buyers and suppliers.

By accessing, registering, or using the Portal, you agree to comply with and be bound by these Terms & Conditions.

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## 2. DEFINITIONS

For the purposes of these Terms:

**Buyer** means any government department, public sector undertaking, private company, institution, organization, cooperative, NGO, or business entity registered on the Portal for procurement purposes.

**Supplier/MSME** means any eligible MSME, manufacturer, trader, service provider, startup, cooperative, self-help group, or business entity registered on the Portal and operating within Jharsuguda District.

**Portal** means JSG SMILE accessible through [www.jsgsmile.in](http://www.jsgsmile.in).

**Order** means any purchase order, work order, service request, quotation acceptance, or commercial commitment between Buyer and Supplier.

**User** means any registered or unregistered visitor accessing the Portal.

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## 3. NATURE OF THE PORTAL

3.1 JSG SMILE is solely a digital facilitation platform.

3.2 The Portal facilitates:

- Supplier discovery
- Buyer discovery
- Product and service listing
- Request for Quotations (RFQs)
- Procurement opportunities
- Communication between Buyers and Suppliers
- Payment tracking and transaction visibility

3.3 The Portal does not:

- Act as Buyer or Seller
  - Enter into contracts on behalf of users
  - Guarantee business opportunities
  - Guarantee payments
  - Guarantee product quality
  - Guarantee service quality
  - Guarantee order fulfillment
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## 4. ELIGIBILITY FOR REGISTRATION

### 4.1 Buyers

The following entities may register:

- Government Departments
- Public Sector Undertakings
- Private Companies
- Industries
- Educational Institutions
- Hospitals
- NGOs
- Cooperatives

- Registered Business Organizations

## 4.2 Suppliers

Suppliers must possess:

- Valid Udyam Registration (where applicable)
- Business presence within Jharsuguda District
- PAN
- GST Registration (if applicable)
- Active Bank Account
- Authorized Signatory Details

The Portal reserves the right to approve, reject, suspend, or terminate registrations.

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## 5. USER REGISTRATION AND ACCOUNT SECURITY

5.1 Users shall provide accurate, complete, and updated information.

5.2 Users are responsible for maintaining the confidentiality of login credentials.

5.3 Users shall immediately notify the Portal of any unauthorized account access.

5.4 The Portal reserves the right to verify user information at any stage.

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## 6. BUYER RESPONSIBILITIES

Buyers agree to:

- Provide genuine procurement requirements.
- Issue accurate specifications.
- Communicate honestly with Suppliers.
- Make payments as agreed.
- Comply with applicable laws and regulations.
- Accept or reject deliveries within reasonable timelines.

Buyers shall not misuse supplier information or engage in unfair trade practices.

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## 7. SUPPLIER RESPONSIBILITIES

Suppliers agree to:

- Provide accurate company information.
- Maintain valid registrations and licenses.
- Deliver products/services as committed.
- Comply with quality standards.
- Honor warranties and service commitments.
- Maintain legal and statutory compliance.

Suppliers are solely responsible for products and services supplied through transactions initiated via the Portal.

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## 8. PRODUCT AND SERVICE LISTINGS

8.1 Suppliers may list products and services on the Portal.

8.2 Listings must be accurate and lawful.

8.3 The Portal may remove listings that are:

- False
- Misleading
- Offensive
- Illegal
- Infringing third-party rights

8.4 The Portal does not certify or endorse listed products or services.

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## 9. REQUEST FOR QUOTATION (RFQ)

9.1 Buyers may publish procurement requirements.

9.2 Suppliers may submit quotations.

9.3 Buyers shall independently evaluate quotations.

9.4 The Portal shall not influence procurement decisions.

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## 10. ORDER PLACEMENT AND ACCEPTANCE

10.1 Orders are placed directly between Buyers and Suppliers.

10.2 The Portal is not a party to any Order.

10.3 Commercial terms including:

- Pricing
- Quantity
- Delivery timelines
- Warranty conditions
- Payment terms

shall be mutually agreed between Buyer and Supplier.

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## 11. PAYMENT GATEWAY AND SETTLEMENT

11.1 The Portal may provide integrated payment gateway facilities through authorized third-party payment partners.

11.2 Payments may be processed through a secure transaction management framework.

11.3 The Portal may provide transaction tracking and payment visibility.

11.4 Settlement to Suppliers may generally occur on a T+1 basis after completion and acceptance of the transaction, subject to:

- Banking timelines
- Regulatory requirements
- Payment gateway policies
- Verification processes

11.5 The Portal itself does not hold customer funds and does not operate as a bank or financial institution.

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## 12. REFUNDS AND CHARGEBACKS

12.1 Refunds may be processed in accordance with:

- Buyer-Supplier agreements

- Payment partner policies
- Applicable laws

12.2 Chargebacks and payment disputes shall be governed by banking and payment gateway regulations.

12.3 The Portal reserves the right to temporarily suspend settlement pending investigation of disputed transactions.

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## 13. TAX COMPLIANCE

All Users shall be solely responsible for:

- GST compliance
- Income Tax obligations
- TDS compliance
- Regulatory filings
- Statutory deductions

The Portal assumes no responsibility for tax compliance of Users.

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## 14. QUALITY AND WARRANTY DISCLAIMER

The Portal does not guarantee:

- Product quality
- Service quality
- Product suitability
- Technical specifications
- Compliance certifications

All such responsibilities rest solely with the Supplier.

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## 15. DELIVERY DISCLAIMER

The Portal is not responsible for:

- Delivery delays

- Damaged goods
- Logistics failures
- Short deliveries
- Incorrect shipments

Delivery obligations remain solely between Buyer and Supplier.

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## 16. DISPUTE RESOLUTION

Any dispute regarding:

- Pricing
- Quantity
- Quality
- Delivery
- Warranty
- Payment
- Service performance

shall be resolved directly between Buyer and Supplier.

The Portal shall not act as an arbitrator, mediator, or adjudicating authority.

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## 17. FRAUD PREVENTION

The Portal reserves the right to:

- Verify user information
  - Request additional documents
  - Suspend suspicious transactions
  - Restrict access
  - Report unlawful activities to competent authorities
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## 18. INTELLECTUAL PROPERTY

All content, software, designs, logos, trademarks, and branding associated with JSG SMILE are protected under applicable intellectual property laws.

Users shall not copy, modify, distribute, or misuse Portal content without authorization.

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## 19. PRIVACY AND DATA USAGE

Users consent to the collection, storage, processing, and use of data for:

- User verification
- Transaction facilitation
- Communication
- Analytics
- Government reporting
- Platform improvement

Data handling shall be governed by the Portal Privacy Policy.

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## 20. SUSPENSION AND TERMINATION

The Portal may suspend or terminate user accounts for:

- False information
- Fraudulent activity
- Violation of these Terms
- Misuse of the Portal
- Legal non-compliance

Such actions may be taken without prior notice where deemed necessary.

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## 21. LIMITATION OF LIABILITY

To the maximum extent permitted by law, District Administration Jharsuguda, District Industries Centre (DIC), Government of Odisha, Technology Partner, Portal Operator, and their officers shall not be liable for:

- Business losses
- Revenue losses
- Missed opportunities
- Product defects

- Service deficiencies
- Delivery failures
- Payment disputes
- Fraudulent transactions
- Indirect or consequential damages

The maximum liability of the Portal and associated entities shall be NIL.

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## 22. INDEMNITY

Users agree to indemnify and hold harmless:

- District Administration Jharsuguda
- District Industries Centre (DIC)
- Government of Odisha
- Technology Partner
- Portal Operator

against any claims, losses, damages, liabilities, penalties, costs, or legal expenses arising from their use of the Portal.

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## 23. FORCE MAJEURE

Neither the Portal nor its stakeholders shall be liable for delays or failures resulting from:

- Natural disasters
  - Floods
  - Earthquakes
  - Pandemics
  - Government restrictions
  - Power failures
  - Internet disruptions
  - Cybersecurity incidents
  - Other events beyond reasonable control
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## 24. GOVERNING LAW

These Terms & Conditions shall be governed by and construed in accordance with the laws of India.

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## 25. JURISDICTION

Any legal proceedings arising in connection with these Terms shall be subject to the exclusive jurisdiction of competent courts located in Odisha.

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## 26. MODIFICATIONS

The Portal reserves the right to amend these Terms & Conditions at any time.

Updated Terms shall become effective upon publication on the Portal.

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## 27. DISCLAIMER

JSG SMILE ([www.jsgsmile.in](http://www.jsgsmile.in)) is solely a facilitation platform.

District Administration Jharsuguda, District Industries Centre (DIC), Government of Odisha, Technology Partner, and Portal Operator:

- Are not Buyers.
- Are not Suppliers.
- Are not contracting parties.
- Do not guarantee business transactions.
- Do not guarantee payments.
- Do not guarantee product quality.
- Do not guarantee service delivery.

All transactions are undertaken solely at the risk and responsibility of the participating Buyers and Suppliers.

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## 28. ACCEPTANCE OF TERMS

By selecting “I Agree”, creating an account, submitting information, posting requirements, listing products/services, making payments, or otherwise using the Portal, the User acknowledges that they have read, understood, and agreed to be bound by these Terms & Conditions.